

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL APPELLATE JURISDICTION)

Criminal Appeal No. 3155 of 2021

Zahid

.....Convict-appellant.

-VERSUS-

The State

..... Respondent.

With

Criminal Revision No. 2094 of 2019

Motin

.....Convict-Petitioner.

-VERSUS-

The State

..... Respondent.

Mr. Ujjal Paul, Adv.

..... For the appellant

(In CrI. Appeal No. 3155 of 2021)

Mr. Subir Nandi Das, Adv.

...For the appellant

(In CrI. Revision No. 2094 of 2019)

Mr. Md. Taifoor Kabir, DAG with

Mr. Md. Lokman Hossain, AAG

Mr. Md. Hatem Ali, AAG

..... For the State.

Present:
Mr. Justice Mamnoon Rahman

Heard and Judgment on: 21.11.2023

Both the appeal and rule were heard together and now disposed of by a common judgment as they do involve in similar question of facts and law though the parties are not same.

In Criminal Appeal No. 3155 of 2021

This appeal is directed against the judgment and order of conviction and sentence dated 24.01.2017 passed by the learned Joint Sessions Judge, 2nd Court, Sylhet in Sessions Case No. 2570 of 2013, arising out of Dakkhin Surma Police Station Case No. 08 dated

15.09.2009, corresponding to G.R. No. 182 of 2009 convicting the appellant under section 451 of the Penal Code and sentencing him to suffer rigorous imprisonment for 02 (two) years along with a fine an amount of Taka 3,000/- (three thousands) only, in default to suffer simple imprisonment for another 01 (one) month and also convicting the appellant under section 382 of the Penal Code and sentencing him to suffer rigorous imprisonment for 05 (five) years along with a fine an amount of Taka 5,000/- (five thousands) only, in default to suffer another 02 (two) months simple imprisonment.

In Criminal Revision No. 2094 of 2019

Rule was issued calling upon the opposite party to show cause as to why the judgment and order dated 07.07.2019 passed by the learned Additional Metropolitan Sessions Judge, Sylhet in Criminal Appeal No. 208 of 2019, dismissing the appeal in affirming the judgment and order of conviction and sentence dated 24.01.2017 passed by learned the Metropolitan Joint Session Judge, 2nd Court, Sylhet in G. R Case No. 182 of 2009 arising out of Dakshin Surma Police Station Case No. 8 dated 15.09.2009, convicting the petitioner and another under Section 451 of the Penal Code, 1860 and sentencing them to suffer rigorous imprisonment for a period of 2(Two) years with fine of Taka 3,000/- each, in default, suffer simple imprisonment for a period of 1 (one) Month and also convicting them under section 382 of the Penal Code, 1860 and sentencing them to

suffer rigorous imprisonment for a period of 5(five) years with fine of Taka 5,000/- each, in default, suffer simple imprisonment for a period of 2 (two) months should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

The short facts relevant for the disposal of the appeal as well as rule, are that, one Helal Ahamad being informant lodged a First Information Report (FIR) with the South Surma Police Station against the appellant/petitioner alleging *inter-alia* that on the date of occurrence while the informant was in his business establishment the accused appellant/petitioner went to his house and asked his wife to open the door. Thereafter, they entered into the house and snatched away Tk. 2,00,000/- as well as ornaments worth of Tk. 1,20,000/- by showing force and threat of injury and hence the case.

The police registered the case as South Surma Police Station Case No. 8 dated 15.09.2009 and started investigation. The police after investigation submitted charge sheet being No. 149 dated 20.11.2009 against two persons, namely appellant Zahid and petitioner Motin. Eventually, the case transmitted to the court of Joint Sessions Judge, 2nd Court, Sylhet being Sessions Trial Case No. 2570 of 2013. The trial court proceeded with the case wherein the prosecution adduced as many as six witnesses and the defence adduced none. It transpires that the court below could not examine the petitioner/appellant under section 342 since they were absconding.

Thereafter, the trial court after hearing the parties, considering the facts and circumstances, materials on record, evidence both oral and documentary passed the impugned judgment and order of conviction and sentence. Being aggrieved by and dissatisfied with the said judgment and order passed by the trial court the appellant Zahid preferred appeal before this court instead of preferring appeal before the Court of Sessions Judge because of the deadlock prevailing for Covid-19 Epidemic. It further transpires that the other accused Motin preferred appeal ultimately before the appellate court and the appellate court also affirmed the judgment and order of conviction passed by the trial court. Against which the convict petitioner Motin preferred criminal revision before this court since the appeal arises out of the same judgment and order of conviction and sentence against which criminal revision is pending this court is competent to hear the appeal though the jurisdiction lies with the Court of Sessions Judge.

Mr. Ujjal Paul, the learned counsel appearing on behalf of the appellant/petitioner submits that both the courts below without applying their judicial mind and without considering the facts and circumstances, most illegally and in an arbitrary manner passed the impugned judgments and order of convictions and sentences which requires interference by this court. He submits that admittedly there are enmities in between the parties which being admitted in the police report as much as the prosecution failed to produce any single credible

witnesses. The learned Advocate placed the evidence and submits that except the informant and his wife none other witnesses are eye witnesses nor they have seen the present appellant/petitioner committing the said offence in any manner. He further submits that admittedly no incriminating articles were recovered from the possession of the present appellant/petitioner. He also submits that though the present petitioner/appellant were arrested but there was no confessional statement nor any other corroborated evidence to show their active involvement in the offence as alleged hence, the impugned judgment and order of conviction and sentence is liable to be set aside for ends of justice.

Mr. Subir Nandi Das, the learned Advocate appearing on behalf of the petitioner in Criminal Revision No. 2094 of 2019 adopted the submissions as made by the learned Advocate for the appellant in Criminal Appeal No. 3155 of 2021.

Mr. Mohammad Taifoor Kabir, the learned Deputy Attorney General appearing on behalf of the respondent-state vehemently opposes the appeal and rule. He submits that courts below on proper appreciation of the facts and circumstances, materials on record, evidence both oral and documentary passed the impugned judgment and order passed by the courts below which requires no interference by this court.

I have heard the learned Advocate for the appellant/petitioner as well as the learned Deputy Attorney General for the state. I have perused the impugned judgment and order of conviction and sentence passed by the trial court as well as the lower appellate court, respective Memorandum of appeal, revisional application, papers and documents annexed herewith as well as LC Records.

On perusal of the same, it transpires that both the appellant and petitioner stood charge for an offence committed under section 451/382 of the Penal Code. It transpires that the informant lodged the case against the present appellant/petitioner alleging *inter-alia* that on the date of occurrence they went to his house and forced his wife to open the door and thereafter they entered forcefully and broken the Almira as well as snatched away money and ornaments. It further transpires that after investigation the police submitted charge sheet. It also transpires that the trial court examined as many as six witnesses.

P.W. 1 who is the informant in his deposition supported the prosecution case. However, he could not be cross-examined due to absence of the accused persons. P.W. 2 in his deposition stated that on hearing hue and cry he went to the place of occurrence and heard the same. P.W. 3 is also corroborated the evidence of P.W. 2. P.W. 4 in his deposition stated though he went to the place of occurrence but he did not know anything about the same. P.W. 5 is the wife of the informant who supported the statement made by her husband as P.W.

1. P.W. 6 is a formal witness who conducted the investigation as Investigating Officer and submitted charge sheet.

So, on meticulous perusal of the evidence, it transpires that except P.W. 1 and P.W. 4 none of the witnesses mentioned the name of the accused person in any way. It further transpires that P.W. 2, P.W. 3 and P.W. 5 are the local witnesses but they are not eye witnesses nor they have seen the accused persons involved in the commission of the offence as alleged. In a criminal case it is incumbent upon the prosecution to prove the charge against the accused person beyond all reasonable doubt by adducing sufficient oral and documentary evidence. In the present case in hand, it transpires that as per the P.W. 1 the occurrence took place at night but none were present though there was an allegation of hue and cry and use of force for a substantial period. It further transpires that the occurrence took place at 9.00 P.M., on 13.09.2009 but the case was filed long after two days and as per the Recording Officer he received a typed FIR. It further transpires from the police report that there are previous enmities and such delay in filing the typed FIR which clearly shows that there is chance of manipulation or story after thought. Apart from that it transpires that except P.W. 1 and P.W. 4 there is no single evidence mentioned the name of the appellant/petitioner nor any incriminating articles were recovered from their possession as

well as they did not make any confessional statement. Hence, I am of the view that both the appeal and rule merits consideration.

Accordingly, the appeal is allowed and the rule is made absolute. The impugned judgments and orders of convictions and sentences passed by both the courts below are hereby set aside. The appellant and petitioner are discharged from their bail bonds and they are acquitted from the charge leveled against them.

Send down the L.C. Records to the concerned court below with a copy of the judgment at once.

(Mamnoon Rahman, J:)